



PRICE CONTROL AND PREVENTION OF PROFITEERING AND HOARDING (AMENDMENT) ORDINANCE, 2009.

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**PRICE CONTROL AND PREVENTION OF PROFITEERING AND HOARDING
(AMENDMENT) ORDINANCE, 2009**

ORDINANCE NO. XL OF 2009

WHEREAS, it is expedient further to amend the Price Control and Prevention of Profiteering and Hoarding Act, 1977 (XXIX of 1977), for the purposes hereinafter appearing;

AND WHEREAS, the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.- (1) This Ordinance may be called the Price Control and Prevention of Profiteering and Hoarding (Amendment) Ordinance, 2009.

(2) It shall come into force at once and shall be deemed to have taken effect on the 13th March, 2009.

2. Insertion of new section, Act XXIX of 1977.- (1) In the Price Control and Prevention of Profiteering and Hoarding Act, 1977 (XXIX of 1977), after section 2, the following new section 2A shall be inserted, namely:—

"2A. Establishment of Price Control Councils.-(1) There shall be a Federal Price Control Council at Federal level and a Provincial Price Control Council in each Province.

(2) The Federal Price Control Council shall be headed by the Prime Minister and shall consist of the following members, namely:

- (1) Minister for Finance or Advisor to the Prime Minister on Finance, Revenue, Economic Affairs and Statistics;
 - (2) Minister for Food and Agriculture & Livestock;
 - (3) Minister for Industries and Production and Special Initiatives;
 - (4) Minister for Interior;
 - (5) Deputy Chairman, Planning Commission;
 - (6) Chief Ministers of all Provinces; and
 - (7) Such other member as the Prime Minister may deem fit.
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(3) The Federal Price Control Council shall-

- (i) information regarding prices of essential commodities prevailing in various markets;
- (ii) review the prices fixed by the competent authorities in various parts of the country;
- (iii) monitor the action taken by the Special Magistrates and other enforcement authorities under this Act for purposes of price control; and
- (iv) issue directions and orders to ensure implementation of the provisions of this Act.

(4) The Provincial Price Control Council shall be headed by the Chief Minister of the Province and shall consist of the following members, namely:

- (i) Minister for Agriculture;
- (ii) Minister for Food;
- (iii) Minister for Industries;
- (iv) Minister for Agriculture and Marketing;
- (v) Chief Secretary;
- (vi) Chairman or Additional Chief Secretary, Planning and Development;
- (vii) Secretary Home Department; and
- (viii) Such other members as the Chief Minister may deem fit.

(5) The provisions of subsection (3) shall mutatis mutandis apply to Provincial Price Control Council.

(6) The Provincial Price Control Council shall also be responsible for ensuring implementation of the directions and orders issued by Federal Price Control Council."
